
Journal

1986 PLD 119

Court

SHARIAT COURT (A J & K)

Date

1986-04-08

Appeal No.

CRIMINAL REVISION NO. 13 OF 1986,

Judge

ABDUL MAJEED MALLICK, C J

Parties

TARIQ HUSSAIN AND 3 OTHERS (PETITIONERS) VERSUS TALIB HUSSAIN RESPONDENT

Lawyers

BASHARAT AHMAD SHAIKH FOR PETITIONERS. ABDUL KHALIQ ANSARI FOR RESPONDENT.

Statutes

CRIMINAL PROCEDURE CODE (V OF 1898) - SS. 526 AND 561-A AZAD JAMMU AND KASHMIR ISLAMIC PENAL LAWS ENFORCEMENT ACT (IX OF 1974) - S. 32(2) PENAL CODE (XLV OF 1860) - S. 307/326/447/426/148/149

Judgment

The petition is moved for quashment of proceedings, for want of jurisdiction, undertaken by the District Criminal Court, Mirpur, is a private complaint of Talib Hussain against Tariq Hussain and others, under sections 14 and 15 of the Islamic Penal Laws Act read with sections 307, 326, 447, 426, 148 and 149 of the Penal Code.

2. The petition has arisen in the circumstances as an incident occurred on March 19, 1979, in Village Sandoa, Tehsil Bhimber, in a dispute over land, wherein one person belonging to the petitioners' party was killed and Muhammad Fazil, uncle of Talib Hussain, also received injuries on vital part of body. The local police registered a case against Talib Hussain and his associates on various charges including murder, and submitted challan in the District Criminal Court, Mirpur. After considerable interval, a private complaint was made by Talib Hussain in the said Court on October 13, 1980, in which process was issued to the accused (present petitioners) on November 12* 1980. Proceedings in cross cases were undertaken simultaneously but the challan case preceded as progress was made by recording evidence of prosecution. The private complaint remained on the file of District Criminal Court without progress as despite presence of witnesses, their evidence was not recorded and it still occupied that position. It appears that evidence of prosecution in the challan case is at its tail as statement of last formal witness only remains to be recorded.

3. Mr. Basharat Ahmad Sheikh, the learned counsel for the petitioners contended that the District Criminal Court was incompetent to take cognizance of offence ascribed to the accused in private complaint as under law Tehsil Criminal Court alone was competent to do so. It was emphasised that in view of the sentence prescribed under law, the offences described in the private complaint were exclusively triable by Tehsil Criminal Court, as such the proceedings undertaken by the District Criminal Court were a nullity. It is undeniable that at the time when cognizance in the case was taken by the District Criminal Court, offence of attempt to murder under section 307, Penal Code, was triable exclusively by District Criminal Court but by a subsequent amendment, it was made triable by Tehsil Criminal Court. Thus, when cognizance was taken by the District Criminal Court, it had the jurisdiction to try it. It is noticed from the record that no progress is shown to have been made in the complaint proceedings except recording of statements of the accused under section 242, Cr. P. C., and the evidence of prosecution is yet to be recorded. The statements of the accused persons were equally recorded at a time when the Court enjoyed its jurisdiction. Therefore, the proceedings, as they are, still confine to the stage when jurisdiction vested in the Court.

4. It is accepted that ordinarily the alleged offences described in complaint are triable by Tehsil Criminal Court. This proposition is unquestionable. The controversy, however, has arisen as in a common incident both parties received injuries and made counter accusations ascribing each other aggressor. In this context it is to be settled whether it would be fair, reasonable and in the interest of justice to allow the proceedings to continue at different forums having ordinary jurisdiction under law or both cases should be tried simultaneously in one Court. Under the Azad Jammu and Kashmir Islamic Penal Laws Act, 1974 (hereinafter referred to as the Act), no specific provision is available to settle the controversy as the law provides a schedule containing various offences triable by particular Courts, namely, Tehsil and District Criminal Courts. At the same time, it prescribes no prohibition that District Criminal Court shall not try an offence triable by Tehsil Criminal Court. Section 32(2) of the Act postulates that the provisions of the Criminal Procedure Code shall apply to all such matters which are not described in the Act.

Under this provision, in absence of an express provision relating to jurisdiction in respect of trial, one has to revert to the provisions of the Criminal Procedure Code. A study of the Criminal

Procedure Code again reflects that no specific provision relating to trial of cross-cases has been prescribed in the Code. In such a situation, various superior Courts of the sub-continent felt advised to lay down a rule that keeping in view the interest of justice, it was more reasonable and fair that cross-cases arising out of common incident, where both the contending parties are accused, should be heard and disposed of simultaneously by one Court. This was done in order to avoid disastrous result in the shape of conflicting decisions. The rule was not considered inflexible to meet unique situation arising in a particular case. Moreover, it has been laid down that trial in both cases should be separate and the final judgments should also be recorded separately. The rules of evidence are also adhered to strictly as each case is to be decided in the light of its own evidence, uninfluenced by the evidence recorded in the counter-case. Mr. Basharat Ahmad Sheikh, the learned counsel for the petitioners, agreed to this position of law but strived to distinguish his case on the sole ground of jurisdiction. It was elaborated that the aforesaid test in respect of cross-cases cannot be a yardstick for snatching jurisdiction of Tehsil Criminal Court or, in other words, investing jurisdiction in District Criminal Court which it does not enjoy under law. This aspect of the proposition is equally untenable as it was deeply considered while laying down the aforesaid rule. Moreover, it is to be kept in view that the appellate Court, unless otherwise expressly provided, has all powers to do what the lower or subordinate Court can do.

It is undeniable that appellate Court is not divested of its inherent jurisdiction to try a case which is otherwise triable by its subordinate Court. B It is agreed that under section 25, subsection (4) of the Act, all orders and decisions of Tehsil Criminal Court are appealable and revisable by District Criminal Court. In presence of the revisional and appellate jurisdiction vested in District Criminal Court under the Act, it cannot be assumed, even for arguments' sake, that District Criminal Court is precluded from taking cognizance of an offence triable by Tehsil Criminal Court. This, of course, is to be considered in totality of the proposition raised in the present case and not in any other case as by allowing this rule to prevail in ordinary cases, would result in overlapping of jurisdiction.

5. Mr. Abdul Khaliq Ansari, the learned counsel for the opposite side, argued that if it is accepted that District Criminal Court cannot take cognizance, in that case this Court is empowered to transfer the case from subordinate Court to District Criminal Court for its simultaneous trial with the counter-case and simultaneous decision in both cases by that Court, in exercise of its powers under section 526 of the Criminal Procedure Code. In support of this contention, reference was made to various authorities to be dealt with herein next. The argument was repelled by Mr. Basharat Ahmad Sheikh, who invited my attention to section 25(3) of the Act by pointing out that in presence of a specific provision for transfer of cases under the Act, in view of the provisions of section 32, subsection this Court cannot fall back to the provisions of section 526, Criminal Procedure Code, to transfer a case from one Court to another. I do not agree with Mr. Basharat Ahmad Sheikh that in present case section 526, Cr. P. C. is not attracted totally as a specific provision relating to transfer of cases exists in the Act. Section 25(3) of the Act empowers this Court to transfer any case, for sufficient reasons, from one District Criminal Court to another District Criminal Court. But it is noticed that the Act contains no provision for transfer of a case from Tehsil Criminal Court to any other Court of competent jurisdiction. The power of transfer of a case from a subordinate Court neither vests in the District Criminal Court nor in the Shariat Court, under the Act. In absence of such specific provisions, High Court has to revert to the provisions of the Code of Criminal Procedure as suggested under section 32(2) of the Act, to transfer a case, on its satisfaction of one of the conditions under subsection (1) of section 526, Cr. P. C. Section 526, subsection clause (e), P. C., lays down that whenever it is made to appear to the High Court that an order of transfer is expedient in the interests of justice, it may, under subclause (i7) of clause order that any case or appeal be transferred from a criminal Court subordinate to its authority to any other such criminal Court of equal or superior jurisdiction. The

requirement or condition precedent to an order of transfer of the case from a subordinate Court to another Court of equal or superior jurisdiction, is that a High Court or Shariat Court, as the case may be, is satisfied that transfer of the case or appeal is expedient in the interests of justice. The High Court or Shariat Court, therefore, must be satisfied that transfer of a case or appeal, as the case may be, pending in a subordinate Court, is essential to meet the end of justice. In absence of such condition, the provisions of section 526(1) clause (e) (ii) cannot be invoked. The proposition raised in the present case is squarely covered by the aforesaid test as it is even accepted by the learned counsel for the petitioners that it is quite fair, reasonable and in the interest of justice that both cases should be heard simultaneously and be decided by one Court to avoid conflicting decisions. In *State v. Mushtaq and others and Muhammad Iqbal v. Mushtaq*, decided by me on June 28, 1981, an identical situation was brought to my notice. In that case, both the parties received injuries in the fight but Shukkur Muhammad belonging to group of Mushtaq and others was killed. Both parties made report at the Police Station. The police presented challan against both the parties but challan in murder case was submitted in the District Criminal Court, whereas the counter-challan under sections 147, 148 and 149, Penal Code, read with sections 14 and 15, Islamic Penal Laws Act, was submitted in the Tehsil Criminal Court. In addition to the counter-challan, Muhammad Iqbal made a private complaint under sections 14 and 15 of the Islamic Penal Laws Act, in the Tehsil Criminal Court. Mr. Abdul Khaliq Ansari, who represented Muhammad Iqbal in that case, moved for transfer of case from Tehsil Criminal Court to District Criminal Court. The prayer was opposed by the opposite side but in view of the dictum of the Supreme Court in *Muhammad Sadiq's case* the challan and private complaint were transferred from Tehsil Criminal Court to District Criminal Court, with the direction that the challan in the murder case and the private complaint under sections 14 and 15 of the Islamic Penal Laws Act be tried simultaneously but separately and be decided by the District Criminal Court in the light of merits of each case. *Khawaja Muhammad Yusuf Saraf, J.* (as he then was), in *Boston and others' case*, decided on October 9, 1974, also ordered transfer of a case from the Court of A. D. M. to the Sessions Judge so that both the cases arising out of a common occurrence, be disposed of simultaneously by one Court.

6. Mr. Abdul Khaliq Ansari the learned counsel for the respondent, invited my attention to various authorities of the Supreme Court and High Court in support of his view. In *Shahid Ali's case* Mr. Justice Murshed, J. recorded his view that whenever there was a case and a counter-case in respect of the same occurrence, it was desirable that they should be tried simultaneously by the same Judge. It was further held that the record of each case should be kept distinct and separate, the evidence on record of one case should not be used in connection with the other case and each case must be decided on its own evidence and record. The learned Judge came to the aforesaid conclusion by availing guidance from *Krishna Pannadi v. Emperor Banappa Kallappai Ajawan and others v. Emperor Lakshminarayana v. Suryanarayana* (5) and *Ujagar Singh v. Emperor* (6).

(1) P L D 1971 S C 713 (2) PLD 1962 Dacca 576 (3) A I R 1930 Mad. 190 (4) A I R 1944 Bom. 146 (5) A I R 1932 Mad. 502 (6) A I R 1936 Lah. 356 7. The reasons listed above lead to the conclusion that the District Criminal Court having jurisdiction at the relevant time rightly took cognizance of offences described in the private complaint and proceeded with the trial in the counter-case, but at this stage when the jurisdiction of the Court has been taken away by amendment, this Court in exercise of powers under section 32(2) of the Act coupled with the provisions of sections 526 and 561 A, Criminal Procedure Code, directs that the private complaint should be heard and disposed of alongwith the counter-challan case. The trial in both cases shall be separate and the evidence recorded in each case shall confine to its decision and the judgment in both cases shall be pronounced simultaneously.

Moreover, as the proceedings in the challan case are nearing completion, the proceedings in the

complaint case shall be completed by day-to-day hearing, so that decision in the challan case is not hampered by unnecessary delay in completion of the proceedings in the complaint case. The petition is disposed of accordingly, s. G. D. Order accordingly.

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